

All law of civil procedure Exit Exam Part III, NEAEA 2003 – 2015 E.C

1. The settlement of disputes through negotiation can be efficient and cost effective because:

- A) Negotiation saves time and avoids the cost involved in litigation.**
- B) Negotiation reduces the case load of courts thereby enabling them to devote more time to other cases under litigation.**
- C) The concessions on both sides enable each party to gain some benefit. D) Negotiation retains the relationship between the parties involved.**
- E) All of the above.**

2. The potential outcomes of an appellate review are:

- A) Confirmation of the lower court's decision on issues of law and facts;**
- B) Reversal of the lower court's decision;**
- C) Variation of the lower court's decision;**
- D) Answers "A" to "C"**
- E) Referral to the cassation bench if it has basic errors in law.**

3. Appellate review means:

- A) A request that a judgment is not clear;**
- B) An appeal to a higher court so that the case be remanded to lower court for review;**
- C) a request that more time be provided to the appellant in the execution of the judgment;**
- D) a request lodged solely against basic errors in law made by the lower court;**
- E) None of the above.**

4. Indicate the statement to which you disagree:

A) Identifying issues, preparation of the appellate brief and oral arguments are the key components of appellate advocacy.

B) Persuasion is not among the core targets in appellate advocacy because facts and laws are themselves adequate to persuade the appellate court towards the appropriate decision.

C) Mere focus on persuasion skills (style) without equal attention to the communication of facts and laws (substance) is futile.

D) Knowledge about the court, the law, watching the bench, focus on substance and citing authority with care are among the key skills in appellate advocacy.

E) Preparation, presentation and effective response to questions are the key elements in appellate oral arguments.

5. Identify the best answer among the following with regard to facts that can be raised during appellate litigation:

A) In principle, no new facts can be raised in appellate litigation other than the ones that were raised at the lower court.

B) New facts can be admissible for appellate litigation if they were raised but unduly rejected during trial at the lower court.

C) The appellate court may take the initiative to admit new evidence.

D) All of the above (a to c).

E) None of the above.

6. In appellate advocacy, *the harmless error doctrine* means:

- A) The appellate court would allow minor errors of fact during the appellate litigation.**
- B) The errors of law and fact made by the appellant and the respondent will always be classified by the appellate court as ‘harmful’ and ‘harmless’ for the purpose of analysis and decision.**
- C) Errors of the lower court that do not alter the outcome of the case shall not bring about the reversal or variation of the lower court’s decision.**
- D) All errors made by lower courts are harmless as long as they are discovered by the appellate court.**
- E) Errors made by litigating parties during the trial are harmless because they can be rectified during the appellate litigation.**

7. If Ato X is the resident of the State of Tigray and Ato Y is the resident of the State of Amhara, which one of the following statements is true about a civil dispute between X and Y?

- A) Federal courts have exclusive jurisdiction over the dispute.**
- B) The law of the State of Tigray or that of the State of Amhara, as opposed to a federal law, may be applied by a federal court hearing the dispute.**
- C) The courts of the State of Tigray or that of the State of Amhara are competent to hear the dispute, but they must apply federal law to resolve the substance of the dispute.**
- D) Appeal does not lie to the Federal Supreme Court if the decision of a High Court in Tigray is reversed by the Tigray Supreme Court.**
- E) B and D only.**

8. The Ethiopian law of *res judicata* is

A) Only an issue precluding device

B) Applicable only if the former decision was given by a court of competent jurisdiction

C) An absolute bar to matters formerly decided between same parties litigating in the same capacities.

D) A non-waivable defense

E) None of the above.

9. A formal source of the Ethiopian law of civil procedure does not include:

A) the FDRE Constitution

B) State laws and constitutions establishing state courts

C) Federal laws establishing federal courts

D) The decisions of the Federal Cassation Bench of the Federal Supreme Court handed down by five judges.

E) None of the above.

10. Which of the following is correct about rules governing local jurisdiction under the Civil Procedure Code of Ethiopia?

A) The rules are helpful only to allocate judicial business between courts of a given judicial system exercising similar jurisdiction.

B) The rules help determine the allocation of judicial power between federal and state courts.

C) They go to the inherent power of the court and, as such the court's decree shall remain invalid if the rules are not complied with.

D) They are non-waivable.

E) All but D.

11. One of the following propositions is correct about Ethiopia's federalism as it pertains to the judiciary:

- A) The judicial power of states is limited to cases falling within the legislative competence of their respective governments.**
- B) Judicial power is the exclusive domain of regular courts.**
- C) The FDRE Constitution guarantees federal review of state matters through appellate process.**
- D) Parties to a dispute cannot agree to federalize a case.**
- E) The FDRE Constitution delegates to the legislative organs of the federal and the state governments the power to establish all the regular courts within their respective jurisdictions.**

12. Civil procedure law is an adjective law. This means:

- A) It is less important than substantive rules.**
- B) It does not have its own independent existence and relevance outside substantive rules.**
- C) Its interpretation and application should be guided by the end of substantive rules.**
- D) It should help a judge reach the same outcome as contemplated by the law maker on the merit of a dispute.**
- E) All but A.**

13. The rules of joinder under Ethiopian law are:

- A) Jurisdictional in nature in that non-compliance affects the validity of the decision of a court.**
- B) Procedural in nature in that the decision of a court remains valid despite non-compliance.**
- C) Procedural in nature but require the court to have local and material jurisdictions on each claim and party joined.**

D) In principle limitative on the nature of claims and the number of parties to be joined.

E) B and C only.

14. Which one of the following is objectionable under Ethiopian procedural law?

A) Confronting the witness of an opponent with a document that is not appended to ones pleading

B) Leading a hostile witness of one's own

C) Standing as witness in own case

D) Refreshing the memory of own witness

E) Cross-examining a witness to obtain a testimony that proves own allegation.

15. If a pleading before a court of first instance is to serve its purpose, it must:

A) Focus on the brief material facts of the case

B) Contain summary of witness depositions

C) Provide for an articulated analysis of the substantive rules governing the merit of the case

D) be amended if a party wants to introduce a newly discovered evidence

E) All of the above.

16. According to the principle of civil trial in Ethiopia:

A) Courts decide only those issues which the parties ask them to decide.

B) Courts do have the function of discovering the ultimate truth.

C) Courts order additional evidence because they have the affirmative duty of assisting weaker parties.

D) Courts take centre stage in the examination of witnesses.

E) All of the above.

17. The court of rendition may be able to review its own decision if any one of the following grounds is present:

A) Failure to give due weight to an evidence

B) Failure to correctly apply a substantive law

C) A new evidence on the merit of the case is discovered

D) The previous judge of the bench gave an order to hear evidence on the merit even if preliminary objections are not ruled on

E) All of the above.

18. Which one of the following is wrong about “issues” in a civil proceeding?

A) Every point of disagreement between a plaintiff and a defendant constitutes a distinct issue

B) The major goal of first-hearing is to check whether parties are at issue

C) A judge is not always bound to determine all the issues he framed

D) Parties have the right to exclude the power of the judge over the framing of issues

E) The court must rule first on preliminary objections, if any, before it frames issues on the substance of the dispute.

19. The correct statement about Ethiopia’s law of judgment and decree is that:

A) The judge is not bound to state reasons for his decision.

B) A judgment can be given orally.

C) A decree may provide for terms of payment of money contrary to the express agreement of the parties.

D) Only the judge who gave a decree is authorized to sign it, otherwise the decree is null and void.

E) All except C are correct.

20. Which of the following is not relevant to pretrial lawyering?

A. Collecting and analyzing documents that are relevant as evidence

B. Series of discussion with the client about the various issues relevant to the case

C. Oral arguments in court

D. Preparing pleadings and filing the statement of claim

E. Evaluating the potential claims of the client and the possible defenses and counter claims of the respondent.

21. A procedural device that allows an indigent plaintiff to institute a civil case in a court of law without paying a court fee is:

A. Public interest litigation

B. Pauperism

C. Legal aid

D. Class action

E. Joinder

22. The rules on venue of courts are procedural. This means:

A. A court which lacks proper venue cannot give a valid judgment

B. Objection to venue of courts is not a waivable defence

C. A court which lacks proper venue may still give a valid judgment

D. The rules are also jurisdictional

E. Interlocutory appeal is admissible.

23. The monetary value of a civil claim on the date of institution of a suit is relevant to determine:

- A. Local jurisdiction of the court**
- B. Whether the claim falls under federal or state court jurisdiction**
- C. Pecuniary jurisdiction of the court and the amount of court fee due**
- D. Subject-matter jurisdiction of the court**
- E. Whether or not the decision of the court is appealable.**

24. A petition for review by cassation bench of the Federal Supreme Court should be filed within days of a final judgment.

- A. 60 days**
- B. 30 days**
- C. 90 days**
- D. 10 days**
- E. 20 days**

25. When a defendant fails to appear on the first hearing of a civil suit despite effective and timely service of summons:

- A. the is deemed to have admitted the suit against him**
- B. the court shall order a new summons to be served on him**
- C. the court may dismiss the suit**
- D. the court shall precede ex-parte without prejudice to the defendant's right to take appeal against the ex-parte decree**
- E. the court may proceed ex-parte but the defendant does not have the right to take appeal against the ex-parte decree**

26. The distinguishing feature of a summary procedure under the Ethiopia Civil Procedure Code is that:

- A. it is the only fast-track procedure recognized in Ethiopia**
- B. it can be employed to prosecute any civil claim so long as the pecuniary value of such claim is known**
- C. a defendant's right to defend is not automatic**
- D. it can be employed at an appellate level**
- E. it can be employed to have a company dissolved**

27. Which procedural irregularity is a jurisdictional issue?

- A. Misjoinder of a party**
- B. Misjoinder of a cause of action**
- C. Non-joinder of an indispensable party**
- D. Non-joinder of a cause of action**
- E. Splitting of claim.**

28. Which one of the following statements is not true about execution of a decree under Ethiopian Civil Procedure?

- A. Not all assets of the judgment-debtor are subject to attachment.**
- B. A court may transfer its decree to another court for execution.**
- C. Property of the debtor encumbered by pledge or mortgage of a third party is exempted from attachment.**
- D. Appeal by a judgment-debtor does not of itself entail stay of the execution of the decree.**
- E. A judgment-debtor may be arrested and detained.**

29. A instituted a suit against B to recover damages for breach of contract. On the day fixed for first hearing, A did not appear to court because he was sick. The court then dismissed his suit, as B denied A's claim against him. What remedy is available for A?

- A. Appeal against the court's order**
- B. Instituting a fresh suit**
- C. Petitioning the same court for order to set aside the dismissal**
- D. Petitioning the president of the court for judicial impropriety**
- E. Review by cassation.**

30. Mr X is sued by Mr. Y. However, the former fails to appear before the court on the date set for the first hearing. Assuming that the court is convinced that the non-appearance of the defendant is attributable to the negligence of the plaintiff, what ruling do you think the court will give?

- A. Strike out the suit.**
- B. Adjourn the hearing to another date.**
- C. Order the suit be struck out or adjourn the hearing to another date.**
- D. Order the suit be dismissed.**
- E. Order the suit be dismissed or adjourn the hearing to another date.**

31. Accelerated procedure is NOT the procedure for cases involving

- A. application for withdrawal of interdiction**
- B. opposition of marriage**
- C. appointment of provisional liquidator**
- D. application for dissolution of manager**
- E. application for attachment of property**

32. Which of the following is NOT true about examination of witnesses?

- A. All witnesses must take an oath or affirmation.**
- B. The court may at any stage recall a witness who has been already examined.**
- C. A party who wishes to testify in his/her own case cannot be cross examined.**
- D. The court can put any question to a witness at any stage of the examination.**
- E. A party who wishes to testify in his/her own case shall take an oath or affirmation.**

33. Non-appearance of the appellant on the date fixed for the hearing of the appeal entails

- A. adjournment of the hearing to another date**
- B. striking out of the appeal**
- C. suspension of the proceeding**
- D. dismissal of the appeal**
- E. review the appeal ex parte**

34. One of the following is correct about summary procedure:

- A. The statement of claim must be accompanied by affidavit.**
- B. The leave to defend cannot be subjected to any condition.**
- D. In cases of several defendants, the leave to defend granted to one of the defendants will apply to the others.**
- E. Judgment rendered without leave to defend cannot be set aside in anyway. here leave to defend is denied, the case shall be tried ex parte.**

35. One of the following is correct about leave to appeal out of time:

- A. The failure of the lawyer of the appellant can be a good cause to grant leave.**
- B. Decisions on applications for leave to appeal out of time are not appealable.**
- C. The position of the respondent is irrelevant in deciding on application for leave to appeal out of time.**
- D. An application for leave to appeal out of time shall be accompanied with affidavit.**
- E. Decisions on application for leave to appeal out of time can be reviewed by the same appellate court.**

36. An appellate court shall remand a case where

- A. the lower court made an error in examining witnesses**
- B. the lower court erred in evaluating evidence produced by the litigants**
- C. the lower court disposed the suit based on preliminary objections**
- D. the lower court omitted to frame a relevant issue**
- E. the lower court omitted to decide on an issue central to the dispute.**

37. Which of the following is NOT true about intervention of third party in a suit?

- A. Application for intervention cannot be made after the first hearing.**
- B. An application for intervention shall be made by a separate statement which specifies grounds justifying the intervention.**
- C. Where the intervention is allowed, the proceeding shall be stayed until the parties are served with the pleading of the intervening party.**
- D. Parties to the dispute shall not be allowed to respond to the third party's application for intervention.**

E. Failure on the part of the intervening party to properly serve the two parties with a copy of his/her statement amounts to withdrawal of intervention.

38. One of the following grounds of preliminary objection precludes the party from institution of fresh's suit with respect to the same cause of action:

A. The pendency of the suit.

B. The subject matter of the suit being res judicata.

C. Material jurisdiction of the suit being out of the power of the court.

D. The court lacks local jurisdiction.

E. An objection made on misjoinder or nonjoinder of parties.

39. In one of the following grounds, the High Court does NOT order change of venue:

A. When it thinks that some question of law of unusual difficulty is likely to arise.

B. When it thinks a fair and impartial trial cannot be held in any court subordinate thereto.

C. When it thinks that the court adjudicating the case is unfit to entertain and provide justice.

D. When it thinks that it is convenient and accessible for the parties or witnesses.

E. When it thinks for whatever reason that it is expedient for the purpose of justice.

40. Non-appearance of both parties to the suit during first hearing entails one of the following:

A. Suspension of the proceeding.

B. Adjournment of the hearing to another date.

C. Striking out of the suit.

D. Dismissal of the suit.

E. Adjudicate the case ex-parte.

41. One of the following denotes hearing in the absence of the defendant in civil proceedings:

A. Default judgment.

B. Trial.

C. Hearing in absentia.

D. Ex-parte hearing.

E. Rule of estoppel between striking

42. One of the following is correct about the difference between striking out of a suit and dismissing a suit under the Civil Procedure Code:

A. dismissing a suit does not avoid the submission of a fresh suit

B. A suit is struck out when a plaintiff fails to appear but defendant appears.

C. Striking out does not avoid the submission of fresh suit only if there is good cause.

D. A suit is dismissed when the plaintiff fails to appear but defendant appears.

E. When the plaintiff fails to appear, a suit is dismissed unless admitted by the defendant

43. One of the following is true about inquisitorial system of litigation:

A. It is mainly practiced in common law legal systems.

B. In such litigation courts have a minimum role.

C. Ethiopian courts fall under this form of litigation.

D. This system of litigation empowers courts for further inquiry of evidence.

E. This form of litigation bars courts from examining witness.

44. Which one of the following statements is true about issues?

A. Whenever there is a civil suit it is mandatory for the court to frame an issue or issues.

B. There might be circumstances where a decision may be made by w without framing an issue.

C. A civil suit is expected to contain either a legal issue or a factual issue.

D. Issues are framed only by the judge under all circumstances.

E. If a case contains both legal and factual issues the judge is expected to resolve the factual issue first and then the legal issue.

45. In Ethiopia a lawyer is expected to consult one of the following legal instruments to clearly understand the material jurisdiction of the federal courts as far as civil cases are concerned which one?

A. The FDRE Constitution

B. The Civil Procedure Code

C. The Federal Courts Proclamation

D. Regional court establishment proclamations

E. The decisions of the Cassation Division of the Federal Supreme Court

46. Which one of the following may be a negation to both material and local jurisdiction of courts?

A. Pendency

B. Consolidation of cases

C. Priority

D. Change of venue

E. Joinder of parties

47. Which one of the following is a mechanism of review of judgment by the court of rendition?

A. Opposition

B. Interpleader

C. Impleader

D. Third party defendant

E. Intervention

48. Which one of the following statements is true under the Ethiopian law of Civil Procedure?

A. Absence of the defendant at the time of hearing without any sufficient cause entails dismissal of the suit.

B. Absence of the plaintiff at the time of hearing without any sufficient cause entails ex parte proceeding.

C. Absence of the plaintiff at the time of hearing entails no legal consequence.

D. Absence of an appellant at the time of hearing without good cause entails dismissal of the appeal.

E. Absence of the plaintiff at the time of hearing entails criminal punishment against the plaintiff.

49. Under the Ethiopian legal system an individual person can be a plaintiff in civil suit where:

A. he believes that the interest of his friend or relative or national interest is affected by the action or inaction of a certain individual or a legal person.

B. he shows to the court that he has a vested interest in the suit and that his suit has a cause of action.

C. he is an Ethiopian national or a foreign national of Ethiopian origin.

D. he has the capacity to pay court fees under all situations.

E. attains majority age despite the presence of his guardian or tutor.

50. Which one of the following statements is true about jurisdiction of courts in Ethiopia?

A. The judicial jurisdiction of courts is defined by the FDRE Constitution.

B. Judicial jurisdiction of courts is defined by the Civil Procedure Code of Ethiopia.

C. There is no law that defines the judicial jurisdiction of Ethiopian courts.

D. At the federal level material and local jurisdiction of courts is determined by the provisions of the Civil Procedure Code.

E. Determining jurisdiction of courts is left to the discretionary power of the Federal Supreme Court.

51. An appellate proceeding does not normally involve:

A. framing of issues

B. hearing

C. examination-in-chief of witnesses

D. giving a ruling on any preliminary objection

E. judgment writing

52. Which one of the following statements is true about joinder of parties under the Ethiopian Civil Procedure Code?

A. The requirements for joinder of plaintiffs and joinder of defendants are one and the same.

B. The requirements for joinder of plaintiffs are more stringent than the requirements for the joinder of defendants.

C. A plaintiff is allowed to join many defendants in one suit without any limit so long as he has a cause of action against all the defendants.

D. The Civil Procedure Code has expressly provided that a person can be joined as a plaintiff even against his will by the order of the court so long as such plaintiff is an indispensable party.

E. No individual can be joined as a co-defendant by the request of the defendant as long as the plaintiff does not have any claim against such individual.

53. The Cassation Division of the Federal Supreme Court entertains civil cases where:

A. one of the parties is a government administrative agency or a public enterprise.

B. the case contains both factual error and error of law.

C. the case involves only issues of private international law.

D. it is proved that the lower courts decided the case by misapplying facts.

E. the decision is final and contains fundamental error of law.

54. Among the following alternatives one is NOT included under rules governing conveyance of rights in an immovable.

A. Rules governing transfer of choses in possession.

B. Capacity of the party who conveys to make an effective conveyance.

C. The capacity of the party to whom the conveyance is made.

D. The formal validity of the conveyance.

E. The nature of the interest transferred.

55. Which one of the following can be a good reason to adjourn hearing?

A. Failure of the accused's lawyer to appear for no good reason.

B. Non-appearance of prosecution for no good reason.

C. Failure of prosecution witnesses to appear.

D. Minor alterations to the charge.

E. The need to comfort the accused.

56. During trial which one of the following is the duty of the prosecution?

A. Opening his case, calling witnesses and conducting cross-examination of witnesses.

B. Opening his case, calling witnesses and conducting examination-in-chief and cross-examination of witnesses.

C. Opening his case, calling witnesses, and conducting cross-examination and re-examination of witnesses.

D. Opening his case calling witnesses and conducting re-examination of witnesses after their examination-in-chief by the accused.

E. Behaving in a manner that is impartial and objective throughout the trial.

57. If the accused person declares that he has completed introducing his defence witnesses and he has no written evidence what will the court order the parties to do next?

A. To submit their opinions on how the trial was conducted with their complaints if any.

B. To submit their final addresses on questions of law and fact.

C. To submit their sentencing opinions.

D. To submit any objection they may have against the charges.

E. To submit their request about introduction of additional evidence,if any.

58. Which one of the following is not a substantial cause to justify the production of additional evidence during appeal?

- A. The evidence was unknown at the trial.**
- B. It could not have been discovered at that time.**
- C. The evidence is presumed to be believed.**
- D. The evidence would probably have a significant effect on the decision.**
- E. The subordinate court refused to admit evidence.**

59. Which one of the following is incorrect about procedural irregularity?

- A. The existence of procedural irregularity by itself will not guarantee the revision of the judgment of the court of rendition.**
- B. The court of rendition can always review its judgment in case x of irregularity.**
- C. If irregularity may not affect the decision on the merits the-proceedings will not be set aside.**
- D. If irregularity does not affect the court's decision on the merits the proceedings will not be set aside.**
- E. Irregularity must substantially affect the decision of the case on-the merits.**

60. Which one of the following is the best reason to review the pervious judgment of the trial in a civil court?

- A. duly served summons by the plaintiff**
- B. Any person whose interests are affected by the appeal court.**
- C. Discovery of additional evidence.**
- D. Procedural regularities.**
- E. The previous decision had arithmetic error.**

61. Which one of the following is true about the execution of decree by the transferee court?

- A. Transferee court can alter vary or add to the terms of the decree,**
- B. The transferee court cannot resolve the ambiguity.**
- C. The transferee court can execute it as it is decreed by the transferor court,**
- D. Transferee court will not have the same power with the x transferor.**
- E. Transferee court can retransfer the decree for execution to another court.**

62. Among the following grounds, which one is incorrect about the temporary injunction ordered by the court?

- A. The property in dispute is in danger of being wasted by a party to the suit.**
- B. The property in dispute is in danger of being wrongfully sold to third party.**
- C. The defendant threatens to remove his property with a view to deceive his creditors.**
- D. A temporary injunction is issued to prevent certain action from**
- E. A suit to restrain the breach of a contract of act, the defendant is threatening to breach the contract**

63. In which of the following situation can the court adjudicate without trial?

- A. When there is admission by one of the parties of the case**
- B. When there is question of law.**
- C. When there is no factual dispute.**
- D. When witnesses are not required to testify.**
- E. When the documentary evidence can prove the allegation sufficiently**

65. In civil cases, the interests of justice should be determined by considering one of the following grounds:

- A. The complexity and vagueness of the case for the community.**
- B. The ability of the party to be adequately represented by the lawyers.**
- C. The rights that are affected by the defendant,**
- D. The impact of the outcome of the case on the wider community.**
- E. The number of parties and the amount of money involved in the claim.**

66. In a civil action by Mr. X against Mr. Y, the former presents Mr. Z as a witness. Mr Z testifies that it was around mid-night and he was standing 50 meters away when he saw Mr Y snatching a laptop from Mr. Y's hands and crashing it to the ground. Mr. Y is given the opportunity to cross examine but he answers to the court's invitation that he has got no questions. The court then render a decree which orders Mr. Y to pay Mr. 300,000birr for the lap top which is actually, according to Mr. Y's arguments, 10 times greater than the actual price of the lap top. An appeal is filed by Mr. Y. Which of the following arguments by Mr. Y needs to be taken into account by the appellate court in deciding the matter? (2 Marks)

- A. The trial court's judgment is erred as it inflates the price of the lap top**
- B. The trial courts should have not given credibility to Mr. Z's as it is impossible to recognize a person from 50 meters in night with neither moon light nor street lights.**
- C. The trial courts should have not given credibility to Mr. Z's as Mr. Z has a visual problem.**
- D. All**
- E. A & B**

67. If you are an appellate advocate, and the client request you to file an appeal, which of the following will automatically make you file the appeal?

- A. The existence of any kind of error that can be observed from the records of the trial court**
- B. The absence of any remedy in the trial court.**
- C. The fact that the case is finalized in the trial court**
- D. All**
- E. None**

68. In both the Civil and Criminal procedure code, there is a prohibition of leading questions in direct examination unless there are exceptional circumstances. Can you mention those exceptional circumstances? Why are they made exceptions?

69. The settlement of disputes through negotiation can be efficient and cost effective because:

- A) Negotiation saves time and avoids the cost involved in litigation.**
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71. Identify the best answer among the following with regard to facts that can be raised during appellate litigation:

- A) In principle, no new facts can be raised in appellate litigation other than the ones that were raised at the lower court.**
- B) New facts can be admissible for appellate litigation if they were raised but unduly rejected during trial at the lower court.**
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- E) None of the above.**

72. In appellate advocacy, the harmless error doctrine means:

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- B) The errors of law and fact made by the appellant and the respondent will always be classified by the appellate court as ‘harmful’ and ‘harmless’ for the purpose of analysis and decision.**
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73. If Ato X is the resident of the State of Tigray and Ato Y is the resident of the State of Amhara, which one of the following statements is true about a civil dispute between X and Y?

- A) Federal courts have exclusive jurisdiction over the dispute.**
- B) The law of the State of Tigray or that of the State of Amhara, as opposed to a federal law, may be applied by a federal court hearing the dispute.**
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- E) B and D only.**

C) federal laws establishing federal courts

D) the decisions of the Federal Cassation Bench of the Federal Supreme Court handed down by five judges.

E) None of the above.

74. The party that is entitled to appeal is:

- A. The plaintiff or the respondent in a civil suit.**
- B. The public prosecutor or the defendant in criminal cases.**
- C. Answers "a" and "b".**
- D. Any party on behalf of public interest.**
- E. None of the above.**

75. Choose the most appropriate sentence regarding the content that appellate litigation usually embodies

- A. Appellate litigation mainly involves legal issues, and possibly issues of fact as well.**
- B. Appellate litigation only involves legal issues.**
- C. Appellate litigation only involves issues of fact.**
- D. Appellate litigation always involves a few legal issues, and predominantly issues of fact.**
- E. None of the above.**

76. Explain the difference between issues that can be grounds of appeal and issues that can be grounds for a cassation petition. What are the parties called during appeal and cassation litigation?

77. Identify the incorrect statement(s) about the cost of litigation under the Civil Procedure Code of Ethiopia is(are):

- A. The loser party bears cost of litigation.**
- B. Both parties may be ordered to bear their own respective costs.**
- C. The cost of litigation includes damages due to a party as a result of abuse of process by its opponent.**
- `D. The cost of litigation is not subject to review by a higher court.**
- E. C and D**

78. Choose the most appropriate statement based on the nature of civil appeal in Ethiopia:

- A. It is no less adversarial than the trial stage.**
- B. Judges are required by law to give deference to the factual findings of trial courts.**
- C. All errors of lower courts merit review.**
- D. It involves de novo hearing.**
- E. No errors other than those asserted by parties can be considered.**

79. Remand under the Civil Procedure Code:

- A. represents the process by which a court of appeal sends a recalcitrant respondent to the custody of police.**
- B. Reversal of the decision of the lower court is a condition precedent for the appellate court to order remand.**
- C. Reversal of the decision of the lower court is a sufficient condition for the appellate court to order remand.**
- D. Failure of the lower court to consider a material evidence of a party necessarily leads to remand.**
- E. All except A.**

80. Which one of the following is correct about examination of witnesses in a civil case under Ethiopian Civil Procedure Code?

- A. It follows the inquisitorial model.**
- B. It follows the adversarial model**
- C. It normally allows to impeach own witness.**
- D. There is no restriction as to the form of question a party may put to a witness.'**

E. B and C are correct.

81. Which one of the following is not a formal source of the law of civil procedure in Ethiopia at the present time?

A. The 1965 Civil Procedure Code of the Empire of Ethiopia;

B. The Constitution of the Federal Democratic Republic of Ethiopia;.

C. The Federal Courts Establishment Proclamation;

D. State laws establishing state courts;

E. None of the above.

82. Choose the correct statement regarding the order of proceeding:

A. Plaintiff always makes its opening statement and produces its evidence before defendant does.

B. Defendant always makes its opening statement and produces its evidence before plaintiff does.

C. The order of proceeding depends on the issue framed and the party who bears the burden of proving same.

D. The order of proceeding is not a typical feature of adversarial model.

E. C and D are correct.

83. Which one of the following is true about the law of pre-trial hearing in Ethiopia?

A. It has the major purpose of resolving issues.

B. It has the main purpose of framing issues, if any.

C. It involves mainly examination of parties and not of evidence.

D. Parties are more active than judges at pre-trial hearing.

E. B and C are correct.

84. One of the following is not true about adjudication without trial:

- A. The court may render judgment if there is admission to all the facts stated in a pleading.**
- B. The court resorts to trial in all cases even if there is admission of all facts stated in the pleading.**
- C. The court may render as it thinks fit if there is admission to all the facts stated in a pleading.**
- D. The court may give an order on the facts that have been partly admitted.**
- E. None of the above.**

85. Appellate litigation may end up in:

- A. the variation of the lower court's decision;**
- B. the confirmation of the lower court's decision.**
- C. the reversal of the decisions which is appealed from;**
- D. remand to the lower court;**
- E. anyone of the above.**

86. One of the following is not true about effective oral argument by an appellate attorney in persuading judges on behalf of his/her client:

- A. Presenting the case to the appellate court in person;**
- B. Responding to questions from the bench;**
- C. Giving utmost attention to the substance of the oral argument;**
- D. Making rehearsal before oral argument and paying more attention to eloquent rhetoric rather than the substance of the case;**
- E. Being calm and confident.**

87. The rules of subject-matter or material jurisdiction are "jurisdictional" while the rules of venue are only "procedural". Explain this statement in light of the relevant provisions of the Civil Procedure Code. (10 points).

G-MANs

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